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Opinion: Why latest California gun restrictions won't make state safer

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Despite his claim that California is "the freedom state," Gov. Gavin Newsom is passing unconstitutional laws that will make Californians less free and less safe.

In late September, Newsom signed the "Gun Violence Prevention and School Safety Act," or Assembly Bill 28. The controversial bill will affect how Californians purchase and carry legal firearms, creating a prohibitive excise tax on gun and ammunition purchases.

While California has many Second Amendment restrictions, this year's newest curtailments are more harmful than their predecessors.

Perhaps the most notable law, Senate Bill 2, raises the carry permit age from 18 to 21 and prohibits legal firearm carriers — who've already run the crucible of California's extensive background application — from carrying in "sensitive" areas. This includes practically all public spaces most prone to mass shootings such as schools, hospitals and parks.

Several groups, including the Firearms Policy Coalition, recently filed a lawsuit challenging the law. According to the complaint, "SB 2 restricts where persons with licenses to carry a concealed weapon may legally exercise their constitutional right to wear, carry, or transport firearms. And it does so in ways that are fundamentally inconsistent with the Second Amendment and the Supreme Court's decision in Bruen."

With any luck, this lawsuit will halt its effects.

These new laws are also a form of financial punishment aimed at gun stores and firearm owners. AB 28 includes an 11% excise tax on the sale of firearms and ammunition, the first by any state. Funds raised from the tax will fund violence reduction measures. The bill's author, Assemblymember Jesse Gabriel, claims it will relieve medical and legal costs stemming from gun violence.

"If we can have a tax to protect wildlife, we can have one that protects people," he said last month.

If only it were that simple, because California's attempts at prevention have largely failed.

For example, the California Harm Reduction Initiative has been funded by over $15 million in taxpayer dollars since 2019, to little effect. Despite goals to reduce substance abuse, California continues to suffer from rising overdose deaths. Despite the program's immense endowment, overdose deaths have increased more than 10% each of the last three years, and an estimated 1 in 5 Californians deaths of people ages 15-24 are tied to fentanyl.

California's track record on violent crime hasn't gotten better, either. Despite strict gun laws, the state last year experienced a spike in gun-related homicides and aggravated assaults by roughly 38% and 61%, respectively. Last year, the violent crime rate per 100,000 people rose by 6.1%, property crime by 6.2%, and robberies by 10.2%.

Clearly California's investment in so-called prevention strategies isn't working. Why would pumping more taxes into the bureaucracy change this?

Californians keep enduring mass shootings and street assaults, and police departments are reeling from mass officer resignations. Yet, the governor and Legislature are busy making it harder for trained, legal gun owners to protect themselves, their families and their homes.

Newsom shouldn't be surprised when these laws get struck down as grossly unconstitutional. If he had done his homework, he would have seen that the Bruen decision by the U.S. Supreme Court declared that the right to keep and bear arms in public for self-defense is "not a second-class right," and must be held to the same standard as any other constitutional amendment.

Since Newsom is so fond of calling California "the freedom state," maybe he should focus on freeing Californians from violent crime, a problem that wouldn't be so dramatic if residents had the freedom to defend themselves.

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